

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND-----X
MICHAEL LITTLE,

Plaintiff,

-against-

THE CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT; THEIR AGENTS, SERVANTS and
EMPLOYEES; PO DANIEL GOLAT; PO SHATLICK;
SGT. GUIDO and JOHN DOES 1-10 (intending to describe
the other officers involved in the incident claimed herein).Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the County within the City in which the cause of action arose.

The plaintiff resides at 121 Wellington Court, #1H, Staten Island, New York 10314.

Dated: Staten Island, New York
August 28, 2014

Yours etc.,

TRACY & STILWELL and PARTNERS, P.C.

By: 

GAETANO PARRINELLO

Attorneys for Plaintiffs

MICHAEL LITTLE

1688 Victory Blvd.

Staten Island, New York 10314

(718) 720-7000

SUMMONS

Index No.: _____

DATE PURCHASED

DEFENDANT'S ADDRESS

The City of New York
Corporation Counsel
100 Church Street, 4th Floor
New York, New York 10007

New York City Police Department
New York City Law Department
100 Church Street, 4th Floor
New York, New York 10007

Sergeant Guido
New York City Police Department
121 Precinct
970 Richmond Avenue
New York, New York 10314

Police Officer Daniel Golat
New York City Police Department
121 Precinct
970 Richmond Avenue
New York, New York 10314

Police Officer Shatlick
New York City Police Department
121 Precinct
970 Richmond Avenue
Staten Island, New York 10314

JOHN DOES 1-10
New York City Police Department
121 Precinct
970 Richmond Avenue
Staten Island, New York 10314

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
MICHAEL LITTLE,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.: _____

THE CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT; THEIR AGENTS, SERVANTS and
EMPLOYEES; PO DANIEL GOLAT; PO SHATLICK;
SGT. GUIDO and JOHN DOES 1-10 (intending to
describe the other officers involved in the incident claimed
herein).

Defendants.
-----X

Plaintiff, by his attorneys, TRACY & STILWELL AND PARTNERS, P.C., complaining
of the defendants, alleges as follows:

1. At all relevant times herein, the plaintiff, MICHAEL LITTLE, resides in the Borough of Staten Island, County of Richmond, City and State of New York.
2. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK was and still remains a body corporate and politic, constituting a domestic municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. Upon information and belief, and at all times hereinafter mention, the defendant, NEW YORK POLICE DEPARTMENT ("NYPD") is a mayoral agency of defendant THE CITY OF NEW YORK.
4. Upon information and belief, and at all times hereinafter mentioned, the defendant, SERGEANT GUIDO, is a sworn officer of the NYPD.
5. Upon information and belief, and at all times hereinafter mentioned, the defendant, POLICE OFFICER DANIEL GOLAT, is a sworn officer of the NYPD.

6. Upon information and belief, and at all times hereinafter mentioned, the defendant, POLICE OFFICER SHATLICK, is a sworn officer of the NYPD.

7. Upon information and belief, and at all times hereinafter mentioned, the defendant, "JOHN DOE 1-10" were and still are sworn officers of the NYPD who identities are presently unknown to the plaintiff

8. A Notice of Claim to sue indicating the time and place where the injures of the plaintiff, MICHAEL LITTLE, were received, was duly filed by the plaintiff with the Comptroller of the City of New York on the 20th day of November, 2013, and within ninety (90) days after the cause of action occurred and before the commencement of this action. This action was commenced with one year and ninety (90) days after the cause of action accrued.

9. The Notices of Claim set forth all the required information under the law.

10. Since the demands or claims upon which this action is predicated were presented to the Comptroller of The City of New York, adjustment or payment thereof has been neglected or refused.

11. This action is commenced within one (1) year and (90) days after the cause of action accrued.

12. Upon information and belief, at all relevant times herein, the defendant, THE CITY OF NEW YORK maintained a police force, known as the New York Police Department.

13. Upon information and belief, at all relevant times herein, the defendant, THE CITY OF NEW YORK employed uniformed Police Officers, including the defendants, SERGEANT GUIDO, PO DANIEL GOLAT, PO SHATLICK and "JOHN DOES 1-10".

14. Upon information and belief, at all relevant times herein, the defendants, SERGEANT GUIDO, PO DANIEL GOLAT, PO SHATLICK and “JOHN DOES 1-10” were agents, servants and/or employees of the defendant, THE CITY OF NEW YORK.

15. Upon information and belief, at all relevant times herein, the defendants, SERGEANT GUIDO, PO DANIEL GOLAT, PO SHATLICK and “JOHN DOES 1-10” were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

16. Upon information and belief, that at all relevant times herein, the defendants, SERGEANT GUIDO, PO DANIEL GOLAT, PO SHATLICK and “JOHN DOES 1-10” were acting under color of State Law.

17. On September 21, 2013, at approximately 12:01 a.m., the plaintiff was lawfully walking on the east sidewalk on Marsh Avenue located in the borough of Staten Island, in the County of Richmond, City and State of New York.

18. At the aforesaid date and time, defendants SERGEANT GUIDO, PO DANIEL GOLAT, PO SHATLICK and “JOHN DOES 1-10” without probable cause approached plaintiff and placed him under arrest and into handcuffs.

19. During this arrest, no less than 7 members of the NYPD threw plaintiff, MICHAEL LITTLE to the concrete sidewalk, punched plaintiff, who was face down on the concrete in handcuffs, in the back of the head, then dragged and grinded plaintiff, MICHAEL LITTLE’S face across the concrete sidewalk.

20. As a result of the occurrence described herein the plaintiff was caused to suffer humiliation, embarrassment, personal injury, apprehension of imminent offensive contact, mental anguish, invasion of privacy, violation of federal and state constitutional rights and other

injuries of a serious and permanent nature. He was also unlawfully imprisoned for a period exceeding that necessary to process his arrest.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
THE DEFENDANT, THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT**

21. Plaintiffs repeats and reiterates the allegations set forth in paragraphs of this complaint designated 1 through 20 herein with the same force effect as if more fully set forth at length herein.

22. Upon information and belief, the aforesaid occurrence(s) and resulting injuries sustained by the plaintiffs, were due in whole or in part to the failure of the defendant, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT, to train and/or supervise its Police Officers and other personnel in deliberate indifference to the constitutionally protected rights of individuals, including the plaintiff.

23. Upon information and belief, said failure to train and/or supervise its Police Officers and the resulting damages sustained by the plaintiffs, violated the provisions of 42 U.S.C. §1981 and 42 U.S.C. §1983, thereby rendering the defendant THE CITY OF NEW YORK liable in damages to the plaintiffs.

24. By reason of the foregoing, plaintiff has been injured and damaged in an amount which exceeds the jurisdictional amount of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST
THE DEFENDANTS SERGEANT GUIDO, PO DANIEL GOLAT
PO SHATLICK AND "JOHN DOES 1-10"**

25. Plaintiff repeats and reiterates the allegations set forth in paragraphs of this complaint designated 1 through 24 herein with the same force effect as if more fully set forth at length herein.

26. By virtue of the foregoing and pursuant to 42 U.S.C. §§1981 and 1983 the plaintiff has been injured and damaged in an amount which exceeds the jurisdictional amount of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST
ALL DEFENDANTS**

27. Plaintiffs repeat and reiterate the allegations set forth in paragraphs of this complaint designated 1 through 26 herein with the same force effect as if more fully set forth at length herein.

28. By virtue of the aforesaid false imprisonment perpetrated upon the plaintiff, he has been damaged in an amount which exceeds the jurisdictional amount of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS**

29. Plaintiffs repeat and reiterate the allegations set forth in paragraphs of this complaint designated 1 through 28 herein with the same force effect as if more fully set forth at length herein.

30. By virtue of the aforesaid outrageous conduct of defendant's causing emotional distress upon plaintiff, the plaintiff has been injured and damaged in an amount which exceeds the jurisdictional amount of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS**

31. Plaintiffs repeat and reiterate the allegations set forth in paragraphs of this complaint designated 1 through 30 herein with the same force effect as if more fully set forth at length herein.

32. By virtue of the aforesaid described intentional actions, plaintiff was unlawfully and offensively touched by defendant and incurred damages in an amount which exceeds the jurisdictional amounts of all lower courts.

**AS AND FOR AN SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS**

33. Plaintiffs repeat and reiterate the allegations set forth in paragraphs of this complaint designated 1 through 32 herein with the same force effect as if more fully set forth at length herein.

34. By virtue of the aforesaid described intentional actions, plaintiff was placed in actual apprehension of imminent offensive conduct by defendant's in an amount that exceeds the jurisdictional amounts of all lower courts.

WHEREFORE the plaintiff demands judgment against the defendants in the amount of his actual damages, for punitive and exemplary damages where authorized by law, for reasonable attorneys fees where authorized by law and for cost and disbursements.

Dated: Staten Island, New York
August 28, 2014


GAETANO PARRINELLO

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF RICHMOND)

MICHAEL LITTLE, being duly sworn, deposes and says, that deponent is the Plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matter therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


MICHAEL LITTLE

Sworn to before me this
2 day of Sept., 2014


NOTARY PUBLIC

GAETANO PARRINELLO NOTARY PUBLIC, STATE OF NEW YORK Registration No. 02PA6213937 Qualified in Richmond County Commission Expires November 23, 2017
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Index No.: Year:
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Plaintiff(s),

-against-

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JOHN DOES 1-10 (intending to describe the other officers involved in the incident claimed
herein),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

TRACY & STILWELL, PC
Attorney(s) for Plaintiff(s) MICHAEL LITTLE
Office and Post Office Address, Telephone
1688 Victory Boulevard
Staten Island, New York 10314
Telephone Number: (718) 720-7000
Facsimile Number: (718) 442-0552

To:
Attorney(s) for:

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: Signature.....
Print Signer's Name: Gaetano Parrinello

Service of a copy of the within is hereby admitted.
Dated:
Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

that within is a (certified) true copy of a:
duly entered in the office of the clerk of the within named court on:

☐ NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the Hon. _____
one of the judges of the within named Court, at _____ on the _____ day of _____
20____ at _____:____.M.

Dated:

Yours, etc.

To:

Attorney(s) for:

TRACY & STILWELL, PC
Attorney(s) for Above Described Party
Office and Post Office Address, Telephone
1688 Victory Boulevard
Staten Island, New York 10314